



Notification Waiver Determination

McDonald's Australia – McDonald's Restaurants in North West Sydney

Acquisition	McDonald's Australia Limited (McDonald's Australia) applied for a notification waiver in respect of its proposal to enter a Deed of Surrender, Release and Asset Purchase with: - Kramford Pty Limited, Jayark Pty Limited as trustee for Jayark Trust, Sherlee Pty Limited as trustee for Sherlee Trust, Pipmay Pty Limited as trustee for Pipmay Trust, Frygirl Pty Ltd as trustee for Frygirl Trust, and Gozoboy Pty Ltd as trustee for Gozoboy Trust (collectively, the Franchisee), and - Mark Andrew Halford (the Guarantor) in respect of 9 McDonald's restaurants, namely the McDonald's Dural, Kellyville, Rouse Hill, Rouse Hill Town Centre, Kellyville North, Norwest Marketown, Norwest II, Annangrove and Stanhope Gardens restaurants (the Target Restaurants), as described in the transaction documents provided as part of the application (the Acquisition). The Acquisition will involve the Franchisee surrendering their franchise agreements and occupation agreements to McDonald's Australia, and selling the property used in the Target Restaurants to McDonald's Australia.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	3 August 2026

Parties to the Acquisition	The acquirer, McDonald's Australia, owns 1,070 McDonald's restaurants around Australia. It generally operates around 15% of these restaurants (Corporate Restaurants) and licenses the right to operate and occupy the remainder (Franchised Restaurants). The Target Restaurants are 9 McDonald's restaurants, which are currently licensed to the Franchisee and are located at: - McDonald's Dural: 823 Old Northern Rd, Dural 2158 - McDonald's Kellyville: 658 Windsor Rd, Kellyville 2153 - McDonald's Rouse Hill: 1 Resolution Place, Rouse Hill 2155 - McDonald's Rouse Hill Town Centre: Rouse Hill Town Centre, Rouse Hill 2155 - McDonald's Kellyville North: 133 Samantha Riley Drive, Kellyville 2155 - McDonald's Norwest Marketown: Baulkham Hills 2153 - McDonald's Norwest II: 2-6 Lexington Drive, Bella Vista 2153
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	• McDonald's Annangrove: 7 Gynea Cct, Rouse Hill NSW 2155 • McDonald's Stanhope Gardens: Shops 30 & 31, Stanhope Village Centre, Stanhope Gardens 2768. Both the Corporate Restaurants and Franchised Restaurants supply McDonald's branded fast-food products through dine in, takeaway, drive through and / or digital ordering channels.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. the Acquisition involves a transfer from the Franchisee to the franchisor with no change in the number of McDonald's restaurants in the area b. there are alternative providers of fast-food products in the local areas surrounding the Target Restaurants c. there is a low risk of foreclosure or other concerning vertical effects post-acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act